



PETITION FOR GUARDIANSHIP OF A MINOR

(MINOR GUARDIANSHIP)
IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____
County Where You Are Filing the Case

GUARDIANSHIP OF:

First, Middle, and Last Name of Minor Child

Case Number
(Clerk fills in)



Fill out and file a separate *Petition for Guardianship of a Minor* for **each minor** you want guardianship of. These forms may take between 30-45 minutes to fill out.

1. GUARDIANSHIP TYPE



I am asking for guardianship of: *(check one)*

☐ person only ☐ estate (property) only ☐ both person and estate (property)

2. MINOR CHILD'S INFORMATION

List the minor you are asking to be guardian of.

Name: _____ Date of Birth: _____
First, Middle, Last Name *Month, Day, Year*

Where is the minor living:

Street, Apt. #

City

State

Zip Code



If the child is undocumented and under 21, speak to an immigration attorney to see if the minor is eligible for Special Immigrant Juvenile Status before you file this form.



3. MINOR'S CARETAKERS AND CLOSEST RELATIVES

a. Who are the adults the **minor is living with**?

First, Middle, Last Name

Street Address, Apt. #, City, State, Zip Code

Relationship to Minor

First, Middle, Last Name

Street Address, Apt. #, City, State, Zip Code

Relationship to Minor

First, Middle, Last Name

Street Address, Apt. #, City, State, Zip Code

Relationship to Minor

First, Middle, Last Name

Street Address, Apt. #, City, State, Zip Code

Relationship to Minor

b. Who are the minor's other adult relatives?

These are the people who should receive a copy of this Petition and notice of the hearing.

- *List the minor's spouse if the minor is married. If the minor is married, do not list any additional relatives and skip to Section 4.*
- *If the minor is not married, list the minor's parents, adult brothers and sisters, and short-term guardian, if any.*
- *If the minor has none of the above relatives, then list the adult relatives who are most closely related to the minor (for example, grandparents, aunts, and uncles).*
- *Even if you listed one of these relatives in Section a above, list them again here.*

_____ <i>First, Middle, Last Name</i>	_____ <i>Street Address, Apt. #, City, State, Zip Code</i>	_____ <i>Relationship to Minor</i>
_____ <i>First, Middle, Last Name</i>	_____ <i>Street Address, Apt. #, City, State, Zip Code</i>	_____ <i>Relationship to Minor</i>
_____ <i>First, Middle, Last Name</i>	_____ <i>Street Address, Apt. #, City, State, Zip Code</i>	_____ <i>Relationship to Minor</i>
_____ <i>First, Middle, Last Name</i>	_____ <i>Street Address, Apt. #, City, State, Zip Code</i>	_____ <i>Relationship to Minor</i>

Do you need to list more relatives for the minor?

☐ No ☐ Yes (complete and attach the Additional Relatives form)

**4. OTHER CASES INVOLVING THE MINOR OR THEIR PARENTS**

List all other court cases involving the minor or their parents. This includes adoption, divorce, custody, parentage, child support, orders of protection, juvenile, DCFS, and guardianship cases. You must list all cases from anywhere inside or outside the U.S.

_____ <i>Case Number</i>	_____ <i>State or Foreign Country</i>	_____ <i>County, if in Illinois</i>
_____ <i>Case Number</i>	_____ <i>State or Foreign Country</i>	_____ <i>County, if in Illinois</i>

Are there more cases involving the minor or their parents?

☐ No ☐ Yes (complete and attach the Additional Cases form)



5. MINOR'S INCOME, MONEY, AND ASSETS

These are usually called the "estate" in a guardianship case. List if the minor has any income, money, or assets, even if you are not asking the judge to give you control of the minor's estate. You usually do not need to ask the judge to give you control over Social Security or public benefits, because control is designated by the agency rather than the judge.

a. The current **value of the minor's estate** (property, assets, and saved money) is (check one):

- ☐ unknown to me
- ☐ \$0 - no property, assets or saved money
- ☐ \$ _____ (fill in the amount)

b. The minor's **annual income** (including Social Security, SSI, and other public benefits) is (check one):

- ☐ unknown to me
- ☐ \$0 - no annual income
- ☐ \$ _____ (fill in the amount)



6. INFORMATION ABOUT THE MINOR'S PARENTS

Provide information about the minor's parents and why guardianship is needed. **Pick at least one box for each parent.** If there is only one legal parent, check the "No other legal parent" box in section b and leave the rest of the section blank. Do not list a parent whose parental rights have been terminated by a court.

a. **Parent #1:** _____

First, Middle, Last Name

This parent (check all boxes that apply):

- ☐ Agrees to the guardianship (attach a Consent to Guardianship of Minor and Appearance form or they must give consent in court).
- ☐ Died on _____
Date
- ☐ Voluntarily gave up physical custody of the minor.
- ☐ Cannot be located and their last contact with the minor was on _____
Date
at _____
Location
- ☐ Is unable or unwilling to take care of the minor.

b. **Parent #2:**

☐ No other legal parent

There is probably no other legal parent if:

- *no other parent is listed on the birth certificate;*
- *there is no Voluntary Acknowledgment of Paternity/Parentage;*
- *the parents were not married at the time the child was born; and*
- *parentage has not been decided by a court or administrative agency.*

If you check this box, skip to the next question. If you do not check this box, fill in the parent's information below.

- or -

☐ There is a second legal parent:

First, Middle, Last Name

Do not list a parent whose parental rights have been terminated by a court.

This parent (check all that apply):

☐ Agrees to the guardianship (*attach a Consent to Guardianship of Minor and Appearance form or they must give consent in court*).

☐ Died on _____.
Date

☐ Voluntarily gave up physical custody of the minor.

☐ Cannot be located and their last contact with the minor was on _____
Date
at _____.
Location

☐ Is unable or unwilling to take care of the minor.



7. MORE INFORMATION ABOUT THE MINOR

*Do any of these special situations apply to the minor? **Attach any documents** as instructed below.*

a. The **minor is 14 or older and wants me** to be the guardian.

☐ No ☐ Yes – *attach Nomination of Guardian by Minor form filled out by minor.*

b. A judge previously appointed a **standby guardian** of the minor. (*When the court orders that someone will become the guardian once the parents or current guardian are no longer able to care for the minor.*)

☐ No ☐ Yes – *attach the court order.*

c. There is a **short-term guardian** of the minor. (*The parents have a written agreement for someone to temporarily be the guardian without any court involvement.*)

☐ No ☐ Yes – *attach the written agreement.*

d. The minor's parent(s) **named me as a guardian in a will** or other document.

☐ No ☐ Yes – *attach the will or other document.*

e. **Immigration officers administratively separated** the minor from their parents. (*Administrative separation means that the minor has been or will be separated from their parents due to federal immigration enforcement.*)

☐ No ☐ Yes – *attach any documents you have related to that case.*

8. INFORMATION ABOUT YOU, THE PROPOSED GUARDIAN

Fill in information about yourself as the proposed guardian. Read the How to File for Guardianship of a Minor Instructions for information on who can be a guardian.

- a. Name: _____
First, Middle, Last Name
- b. Address: _____
Street, Apt. #, City, State, and Zip Code
- c. Age: _____
- d. Job: _____
- e. Has a judge found you disabled and appointed you a Guardian?
☐ Yes ☐ No
- f. You have:
☐ No felony convictions
☐ The following felony convictions (*do NOT list any misdemeanors*):
1. Date of Conviction _____ Charge _____
 2. Date of Conviction _____ Charge _____
 3. Date of Conviction _____ Charge _____
- g. Have you been found to have neglected or abused any minor by DCFS or in court?
☐ Yes ☐ No
- h. Proposed guardian is willing and able to act as guardian of the minor.

9. INFORMATION ABOUT A PROPOSED CO-GUARDIAN

If you want someone to be co-guardian with you, fill in their information below. If you will be the only guardian, check the first box and skip to the signature.

- ☐ There is no proposed co-guardian.
- ☐ The proposed co-guardian is:
- a. Name: _____
First, Middle, Last Name
- b. Address: _____
Street, Apt. #, City, State, and Zip Code
- c. Age: _____
- d. Job: _____
- e. Has a judge found them disabled and appointed them a Guardian?
☐ Yes ☐ No
- f. They have:
☐ No felony convictions
☐ The following felony convictions (*do NOT list any misdemeanors*):
1. Date of Conviction _____ Charge _____
 2. Date of Conviction _____ Charge _____
 3. Date of Conviction _____ Charge _____



WHAT'S NEXT

NEXT STEP FOR PERSON FILING THIS FORM:

- File all the forms with the Circuit Court Clerk in the county where the minor lives. This is done by e-filing or filing paper documents with an e-filing exemption.
- Get a court date from the Circuit Clerk's office and fill out the *Notice of Hearing on Petition for Guardianship of a Minor* form.
- Then send the *Notice*, this *Petition*, and any additional documents or attachments to all the people listed on the *Notice*.



Learn more about each step in the process and how to file in our instructions:
ilcourts.info/how-to-minor-guardianship.

NEXT STEPS FOR PERSON RECEIVING THIS FORM:

- If you wish to participate in the court case, attend the court date on the *Notice*.
 - If you agree with the guardianship, you can sign an *Appearance and Consent to Guardianship of a Minor* form.
 - If you disagree with the guardianship, you can tell the judge on the court date.
- For more information about going to court, including how to fill out and file forms, call or text **Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.
- If there are any words or terms that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at: ilao.info/lshc-directory.
- You can find all of the statewide forms online at: ilcourts.info/forms.